

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 35-001

Amendments to Title 8, Chapter 2 Section 8-200.1 of the Chickasaw Nation Code (Requirements of Office)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations regarding the requirement of residency for candidates for tribal office, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations in order to provide additional guidance to the Election Commission.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8, Chapter 2, Section 200.1 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 8-200.1 REQUIREMENTS OF OFFICE.

A. **A** Candidates for tribal office ~~must~~ **shall** meet the requirements set forth in the Constitution. Such requirements relate to citizenship, Residency for prescribed periods of time, Voter registration, criminal histories, age, and for certain offices, a blood quantum requirement. The Election Commission may require proof that **a** Candidates meet all such requirements. For example, criteria to be considered in determining the Residency of a Candidate shall include, but is not limited to, the address used for payment of utilities, telephone billing address, and post office address. The Commission shall determine if each Candidate is qualified to run for office.

B. **In determining Residency, the Election Commission may require additional proof of eligibility as they deem necessary. Proof may include:**

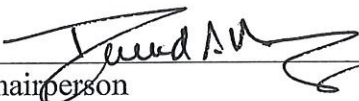
1. originals of current utility, telephone or other billings which display the candidate's physical address. Rural 911 addresses are acceptable; however, post office box addresses are not acceptable as proof of residency.

2. An original property tax homestead exemption statement. A candidate with an existing property tax homestead exemption outside of the District for which they are filing shall be disqualified.

3. An original automobile registration or passport which displays the candidate's physical address.

4. The Election Commission may require additional proof of residency at its discretion, including, but not limited to, a personal visit to the candidate's physical address."

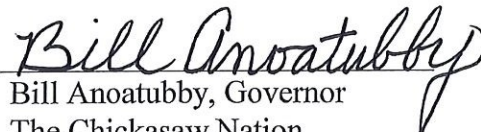
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 15, 2017, by a vote of 12 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: JAN 22 2018

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 35-001
Amendments to Title 8, Chapter 2 Section 8-200.1 of the Chickasaw Nation Code
(Requirements of Office)

Explanation: This Resolution amends provisions of Title 8, Chapter 2 Section 8-200.1 of the Chickasaw Nation Code regarding proof of residency for candidates for tribal office. The amendments provide further guidance to the Election Commission for determining candidate residency.

Presented by: Election Rules and Regulations *Ad Hoc* Committee

Blackline:

“SECTION 8-200.1 REQUIREMENTS OF OFFICE.

A. A Candidate for tribal office shall meet the requirements set forth in the Constitution. Such requirements relate to citizenship, Residency for prescribed periods of time, Voter registration, criminal histories, age, and for certain offices, a blood quantum requirement. The Election Commission may require proof that a Candidate meet all such requirements. For example, criteria to be considered in determining the Residency of a Candidate shall include, but is not limited to, the address used for payment of utilities, telephone billing address, and post office address. The Commission shall determine if each Candidate is qualified to run for office.

B. In determining Residency, the Election Commission may require additional proof of eligibility as they deem necessary. Proof may include:

1. originals of current utility, telephone or other billings which display the candidate’s physical address. Rural 911 addresses are acceptable; however, post office box addresses are not acceptable as proof of residency.

2. An original property tax homestead exemption statement. A candidate with an existing property tax homestead exemption outside of the District for which they are filing shall be disqualified.

3. An original automobile registration or passport which displays the candidate’s physical address.

4. The Election Commission may require additional proof of residency at its discretion, including, but not limited to, a personal visit to the candidate’s physical address.”